

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Friday, May 29, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday, May 29, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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19CV-01019	Producers Livestock Marketing Association vs Gustavo Del Toro
	Order of Examination (Non Appeal)

Appearance required.

24CV-03458	Paul Horta vs Whitton Family Funeral Service
	Motion for New Trial

The motion for a new trial is DENIED.

After a thorough review of the record the court finds there was no irregularity in the proceedings, there was no error in law, Defendant's motion for summary judgment was not procedurally defective, and the evidence was sufficient to support granting the motion for summary judgment.

The evidence supports the finding that the revocation by Mr. Juarez was valid, there was no requirement by Defendant to notify Plaintiff that Mr. Juarez had revoked the

relinquishment of rights, and there was no contract between Plaintiff and Defendant. In short, Defendant owed no duty to Plaintiff.

Accordingly, the motion for new trial is denied.

Motion to Set Aside and Vacate Judgment and Enter a Different Judgment

The motion to set aside and vacate judgment and enter a different judgment is DENIED.

After a thorough review of the record the court finds its judgment does not rest on erroneous legal premises, Defendant's motion for summary judgment was not procedurally defective, and the evidence was sufficient to support granting the motion for summary judgment.

The evidence supports the finding that the revocation by Mr. Juarez was valid, there was no requirement by Defendant to notify Plaintiff that Mr. Juarez had revoked the relinquishment of rights, and there was no contract between Plaintiff and Defendant. In short, Defendant owed no duty to Plaintiff.

Accordingly, motion to set aside and vacate judgment and enter a different judgment is denied.

25CV-00873

Shauna Zaas, et al. vs General Motors, LLC. et al.

Motion for Attorney's Fees for Time Actually Expended and Reasonably Incurred

Plaintiff's motion for attorney's fees is GRANTED.

Attorney's fees are awarded in the amount of \$10,707.50.

Costs are awarded in the amount of \$2,611.16.

Plaintiff seeks to set the lodestar at \$20,220, inclusive of attorney's fees to review Defendant's opposition, draft a reply brief, and attend the hearing on this motion. Plaintiff also seeks costs in the amount of \$2,858.66.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) The court begins its assessment with a lodestar figure. Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

Plaintiff's counsel claims hourly rates ranging from \$595 to \$450 for attorneys and \$250 for law clerk work. To support these rates, Plaintiff cites to the United States Attorney Fee Survey 2017-2018, and the Laffey Matrix. The Court finds the claimed hourly rates are not representative of the rates charged in the local Merced community for the same or similar work. Rather, the Court sets the hourly rate of counsel at \$350 / hour and the law clerk rate at \$125 / hour.

After a substantial review of the entire record and the papers offered in support and opposition of Plaintiff's motion, the Court finds the time billed for attorney hours is excessive and finds it reasonable to reduce the hours billed. The total attorney time of 30.2 hours is reduced by 4.5 hours to 25.7 hours. The Court finds the hours claimed by the law clerks to be reasonable.

This results in a lodestar set by the Court of \$10,707.50. This represents 25.7 hours at \$350 / hour and 13.7 hours at \$125 / hour.

Plaintiff also seeks a lodestar enhancement of 0.3.

Once a lodestar is fixed, the lodestar may be adjusted based on certain factors, including: (1) the novelty and difficulty of the questions involved; (2) the skill displayed in presenting them; (3) the extent to which the nature of the litigation precluded other employment by the attorneys; and (4) the contingent nature of the fee award. (*Serrano v. Priest* (Serrano III) (1977) 20 Cal.3d 25, 49.)

This matter was a straightforward lemon law action that was resolved early in litigation. As such, the court does not find that a lodestar enhancement is appropriate. Accordingly, the Court awards attorney fees in favor of Plaintiff in the amount of \$10,707.50.

Plaintiff's memorandum of costs seeks total costs in the amount of \$2,858.66. Defendant seeks to tax the costs for service of a notice of deposition to the dealership in this matter in the amount of \$75 and post-mediation costs of in the amount of \$172.50. The Court finds this appropriate and costs are taxed in the amount of \$247.50, awarding costs of \$2,611.16 to Plaintiff.

Plaintiff is awarded total attorney fees and costs in the amount of \$13,318.66 to be paid within thirty (30) days of this court's order.

26CV-02506 Laura Emery vs Monique Garza

Order Show Cause Re: Restraining Order

Appearance required. No proof of service of the notice of hearing and temporary orders on Respondent has been filed with the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Mark V Bacciarini
Courtroom 10

627 W. 21st Street, Merced

Friday, May 29, 2026
8:15 a.m.

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Case No.	Title / Description
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25CV-00756	Maria Medina vs Foster Farms, LLC
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Motion to Compel Further Responses to Requests for Production of Documents; Request for Monetary Sanctions Against Defendant Foster Farms LLC

Plaintiff's motion to compel further responses to Production of Documents, Set One, is GRANTED IN PART AND DENIED IN PART.

As to No. 36, the motion is GRANTED. Objections OVERRULED. Defendant is to provide a further verified, code-compliant, response. (See Code Civ. Proc. §§ 2031.210; 2031.220; 2031.230; 2031.240.)

As to Nos. 43, 44, 46, 48, 50, 52, 54, 56, 58, 60, 62, 64, 66, 67, 68, 69 the motion is GRANTED IN PART. As to Defendant's assertion that they produced all documents in their possession, custody, or control, the court cannot force Defendant to produce documents it does not have. If the party has concealed records, the court has the power to exclude documents or other physical evidence at trial that has been concealed and that would cause unfair surprise at trial. (*Pate v. Channel Lumber Co.* (1997) 51 Cal.App.4th 1447, 1455-1456.)

However, Defendant in its separate statement in opposition states that Defendant would provide the name of the third-party provided it uses, and the names of the courses taken. To the extent that it has not been done, Defendant is to provide the name of the third-party provided it uses, and the names of the courses taken.

As to Nos. 78-89, 90-93, 107, 113, the motion is DENIED as untimely. Defendant objected to these requests as untimely in their opposition dated November 17, 2025, and did not waive the issue of timeliness as to these requests. The court's prior ruling ordering the parties to further meet and confer and narrow the issues did not make timely the request for further responses as to these requests.

The request for monetary sanctions is DENIED. Each party acted with substantial justification for bringing and opposing the motion.

Motion to Compel Further Responses to Interrogatories (Set One); Request for Monetary Sanctions Against Defendant Foster Farms LLC

Plaintiff's motion to compel further responses to Special Interrogatories, Set One, is GRANTED IN PART. Defendant is to provide further responses to Special Interrogatories, Set One, Nos. 13-18, subject to a Belaire-West notice and privilege log for any information withheld on a claim of privilege.

Regarding the issue of third-party privacy, the employee information to be produced is subject to a Belaire-West notice that will provide notice to the identified employees and allow them to opt out of the disclosure. The requested information of the identified employees that do not opt out is to be provided to Plaintiff.

The parties are ordered to meet and confer regarding the Belaire-West notice.

The request for monetary sanctions is DENIED. Each party acted with substantial justification for bringing and opposing the motion.